

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2012-6121

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JAMES
COUGHLIN, LICENSE NO. LPC 6557.

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners ("the Board") and James Coughlin ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case No. 2012-6121. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about May 10, 2013, Respondent pled guilty to Sexual Contact-no Consent, a Class 1 misdemeanor, in Case No. 2012CR102 in District Court, Gilpin County, Colorado. He was sentenced to thirty (30) months of supervised probation with offense specific treatment conditions.
 - b. On or around July 8, 2013, Respondent entered into an Interim Cessation of Practice Agreement with the Board and agreed to not engage in the practice of licensed professional counseling pending the outcome of a mental status evaluation, to include psycho-sexual and substance abuse assessments, by a Board-approved evaluator.

- c. On or around April 15, 2014, Respondent submitted to a mental status evaluation, and the evaluator concluded that Respondent is fit to practice professional counseling with certain conditions in place.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(f), C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

SUSPENSION

7. Respondent's license to practice professional counseling is hereby suspended until Respondent has satisfactorily completed his probation in Case No. 2012CR102. During the period of suspension, Respondent shall not engage in the practice of professional counseling in the State of Colorado and shall not hold himself out as a LPC in the State of Colorado.

8. Upon satisfactory completion of Respondent's probation in Case No. 2012CR102, Respondent shall provide written evidence of such completion to the Board. Respondent may then notify the Board of his intention to resume the practice of professional counseling in the State of Colorado and shall be permitted to resume the practice of professional counseling upon the Board's approval of a practice monitor and therapist. Respondent shall not resume the practice of professional counseling until the Board has approved Respondent's practice monitor and therapist. At that time, Respondent's suspension shall end and Respondent's license shall be placed on probation and subject to the requirements described below. Upon Respondent's provision of written evidence of completion of probation in Case No. 2012CR102, the Board shall provide Respondent with a complete copy of all documents Respondent is obligated to provide his practice monitor and therapist pursuant to paragraphs 17 and 28 of this Order.

PROBATION

9. If Respondent seeks reinstatement as a LPC upon completion of the period of suspension, and the Board authorizes Respondent to resume the practice of professional counseling in the State of Colorado, Respondent shall be on probation. The Board will not authorize Respondent to resume the practice of professional counseling until a Board-approved practice monitor and therapist are in place.

10. Respondent's license to practice professional counseling in the State of Colorado will be on probation for five (5) years commencing from the date that the Board authorizes Respondent to resume practice, or from the date Respondent's practice monitor and therapist are approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth below. If at any time Respondent is not in compliance with

the terms and restrictions of probation, including having a practice monitor and therapist in place. Respondent shall cease the practice of professional counseling.

11. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

12. Respondent shall report to the Board if he discontinues the practice of professional counseling, and Respondent shall notify the Board upon resuming the practice of professional counseling.

13. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC in the State of Colorado, is being monitored by a practice monitor and therapist, and is in full compliance with all terms of this Order.

14. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

15. Prior to resuming the practice of professional counseling in the State of Colorado, Respondent must have a Board-approved practice monitor ("practice monitor") in place. During the term of probation, Respondent's practice shall be monitored by the practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include a Board-approved practice monitor application from each potential practice monitor with attached curriculum vita or resume. The proposed practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the practice monitor have a minimum of five years of experience and not have been subject to professional discipline; and
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

16. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. Respondent shall not perform any act requiring a license to practice professional counseling until such time as the Board has approved Respondent's practice monitor.

17. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, all investigative reports, all practice evaluation reports and all mental status evaluation reports; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

18. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for at least one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

19. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

20. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice, his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

21. If the Board determines from the practice evaluation report that Respondent cannot practice any part of his practice with skill and safety for his clients in accordance with generally accepted standards of practice and/or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease the practice of professional counseling or any part of the practice that the Board determines, based on the practice evaluation report, he is not qualified, competent, and/or safe to conduct. Based on the Board's findings and the practice evaluation report, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for his clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and/or safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and/or safe to fully practice, Respondent may resume full practice.

22. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

23. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, and/or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, the Board will make the determination as to whether or not Respondent is able to practice with reasonable skill and safety and whether emergency action should be taken under §§24-4-104 and 12-43-224(2)(c)(II), C.R.S.

24. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

25. Either Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order. If Respondent does not have another practice monitor in place before the termination date, Respondent shall cease the practice of professional counseling until he has another Board-approved practice monitor in place.

PSYCHOTHERAPY

26. Prior to resuming the practice of professional counseling in the State of Colorado, Respondent must have a Board-approved mental health provider ("therapist") in place. During the term of probation, Respondent shall undergo psychotherapy. If the Board has not already approved Respondent's therapist, Respondent must follow the same steps as outlined in paragraph 15 above in order to secure a therapist.

27. Respondent must have a therapist approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to cease his practice until a therapist is approved.

28. After the Board's written approval of the therapist, Respondent and the therapist shall enter into a written contract for therapy. The therapist shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the therapist has received a copy of this Order, the complaint and responsive

documents, all investigative reports, and all other relevant reports; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's therapist.

29. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every week, unless otherwise approved by the Board based on recommendations of the therapist; and
- b. The therapist shall report to the Board in writing on both the progress of the therapy, and whether Respondent is able to practice with reasonable skill and safety for his clients, and must send a copy of each report to the Respondent. The therapist must submit her/his first report by the fifth day of the month following the first full month of therapy monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 report. After the submission of the first 12 reports, unless otherwise ordered by the Board, the therapist shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until therapy monitoring is completed; and
- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, all Board files, and the evaluator's report, and must state that s/he understands the duties and responsibilities s/he is undertaking as Respondent's therapist.

30. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders him unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to the Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

31. Either Respondent or his therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of professional counseling until he has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

32. Respondent cannot practice psychotherapy during the period of probation, and must cease the practice of psychotherapy, if he is not undergoing psychotherapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

PRACTICE RESTRICTION

33. During the term of probation, Respondent is prohibited from providing professional counseling/psychotherapy to any person under the age of eighteen.

TERMS AND CONDITIONS

34. Respondent will strictly observe the prohibitions set forth in §12-43-222(1), C.R.S., of the Mental Health Practice Act, and will ensure that he practices in accordance with the generally accepted standards of practice.

35. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

36. All expenses incurred or associated with the therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

37. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his practice monitor and therapist to provide records and information obtained in the normal course of practice monitoring and psychotherapy to the Board if the practice monitor and/or therapist, determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent expressly waives his right to maintain confidentiality of records or information provided to the practice monitor and therapist in the normal course of practice monitoring and therapy, if the practice monitor and/or therapist determines that he is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. Respondent's waiver of confidentiality is specifically limited to the Board and its designees and does not constitute a general waiver of confidentiality and is not applicable to any person or entity other than the Board and its designees.

38. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

39. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S..

and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

40. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

41. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

42. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

43. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

44. Respondent shall obey all municipal, state and federal laws while this Order is in effect.

45. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

46. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

47. This Order shall be admissible as evidence at any hearing held before the Board.

AGREED TO AND ACCEPTED BY:

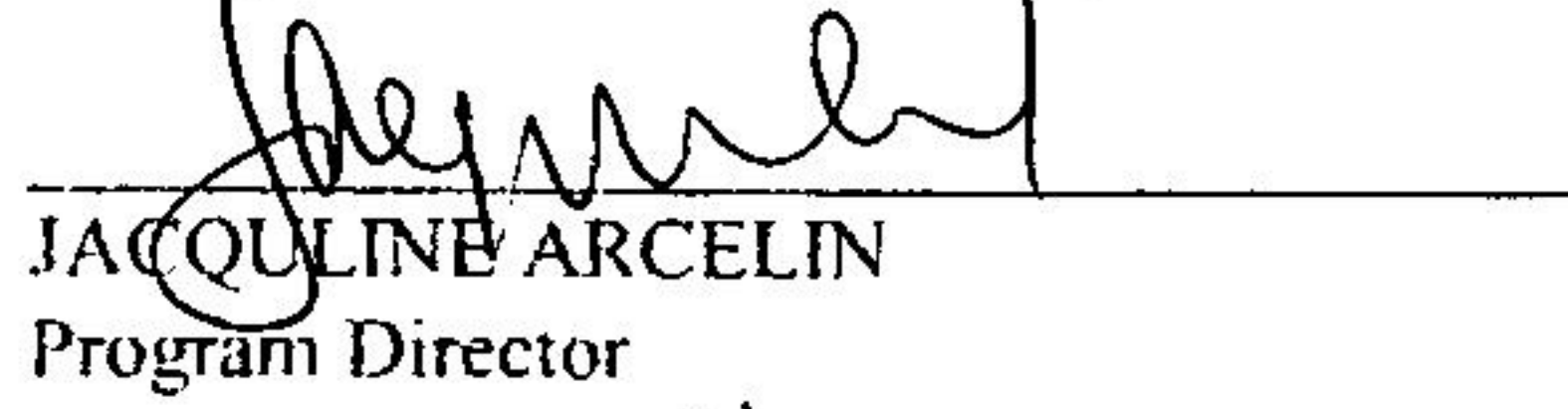
RESPONDENT



JAMES COUGHLIN
LPC NO. 6557

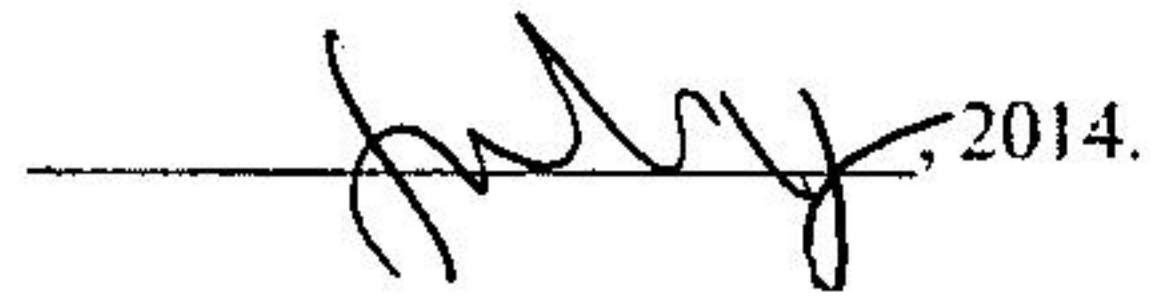
AGREED TO AND ORDERED BY:

**BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**



JACQUILINE ARCELIN
Program Director

Effective this 25th day of


_____, 2014.